



POLICE DEPARTMENT CITY OF NEW YORK

March 20, 2017

MEMORANDUM FOR: Police Commissioner

Re: Sergeant Michael Miller
Tax Registry No. 921596
81 Precinct
Disciplinary Case No. 2015-14306

Charges and Specifications:

1. Said Sergeant Michael Miller, on or about September 12, 2014, at approximately 2325 hours, while assigned to the 81st precinct and on duty, in front of [REDACTED], Kings County, abused his authority as a member of the New York City Police Department in that he stopped Individual 1 without sufficient legal authority.
P.G. 212-11, Page 1, Paragraph 1 – STOP AND FRISK
2. Said Sergeant Michael Miller, on or about September 12, 2014, at approximately 2325 hours, while assigned to the 81st precinct and on duty, in front of [REDACTED], Kings County, abused his authority as a member of the New York City Police Department in that he stopped Michael Bruce without sufficient legal authority.
P.G. 212-11, Page 1, Paragraph 1 – STOP AND FRISK
3. Said Sergeant Michael Miller, on or about September 12, 2014, at approximately 2325 hours, while assigned to the 81st precinct and on duty, in front of [REDACTED], Kings County, abused his authority in that he frisked Michael Bruce without sufficient legal authority.
P.G. 212-11, Page 1, Paragraph 2 – STOP & FRISK
4. Said Sergeant Michael Miller, on or about September 12, 2015, at approximately 2325 hours, while assigned to the 81st precinct and on duty, inside of [REDACTED], Kings County, conduct prejudicial to the good order, efficiency, or discipline of the New York City Police that he entered said house without sufficient legal authority [sic]. (*As amended*)
P.G. 203-10, Page 1, Paragraph 5 – ABUSE OF AUTHORITY

Appearances:

For the CCRB: Timothy Jones, Nicole S. Junior & Suzanne D. O'Hare, Esqs.
Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

For Respondent: John D'Alessandro, Esq.
The Quinn Law Firm
Crosswest Office Center
399 Knollwood Road, Suite 220
White Plains, NY 10603

Hearing Dates:

September 21 and December 16, 2016

Decision:

Specification Nos. 1, 2 and 4: Guilty

Specification No. 3: Not Guilty

Trial Commissioner:

ADCT David S. Weisel

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before the Court on September 21 and December 16, 2016. Respondent, through his counsel, entered a plea of Not Guilty to the subject charges. The CCRB called Michael Bruce and Chevonne Collins as witnesses, and presented the interview transcript of Individual 1. Respondent testified on his own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

After reviewing the evidence presented at the hearing, and assessing the credibility of the witnesses, the Court finds Respondent Guilty of Specification Nos. 1, 2 and 4, and Not Guilty of Specification No. 3.

FINDINGS AND ANALYSIS

Introduction

It is undisputed that on September 12, 2014, Respondent and other officers engaged in a street encounter with Individual 1 and Michael Bruce on the sidewalk in front of [REDACTED]

[REDACTED] in Brooklyn. Respondent knew Individual 1 from previous encounters. Respondent also was aware that Individual 1 was a suspect in two robbery patterns.

On the evening in question, Individual 1 and Bruce were speaking to each other on the sidewalk. According to the CCRB, that is all they were doing. Respondent, however, did not know Bruce. He saw the men standing close to the parked cars. In Respondent's view, this was consistent with Individual 1 robbing Bruce because they would be blocked from passing vehicles by the row of parked cars. An officer called out to Individual 1 and both Individual 1 and Bruce ran off. Although Respondent disputes that this was a "stop" of either individual, it is undisputed that Respondent caught Bruce and grabbed his pockets to determine what was inside.

Individual 1 ran into the residence located at [REDACTED], which belonged to Chevonne Collins, his cousin. Individual 1 either lived there or was staying there. Other officers apprehended Individual 1 just inside the vestibule. They told Respondent that based on the way Individual 1 was fighting with them, they believed he dropped or threw some kind of contraband. Respondent stepped inside the residence, looked briefly, but did not find anything.

The issues to be determined in this case are whether Respondent acted without legal authority when he stopped Individual 1 and Bruce, frisked Bruce, and entered [REDACTED]

Evidence

MICHAEL BRUCE testified that he was 25 years old and was walking to the home of his friend, Individual 1, around 2230 hours on September 12, 2014. The home had a set of steps leading up to the front door. He claimed there were no lights illuminating the street at the time. Bruce testified that he was approached by four officers, who said "hey, turn around." One of the officers, Respondent, said to come out of the yard, and Bruce asked why. Bruce tried to flee into the house but Respondent caught him. Bruce was wearing sweatpants at the time. Respondent frisked Bruce's pockets and placed him under arrest after Bruce "got offended" and "got loud,"

saying, "Officer, what's your problem?" Bruce had his iPhone 4 in his hand. The phone did not have a case (Tr. 61-73, 76-82, 88-89).

When the officers approached, Bruce told Individual 1 to go upstairs and ring the doorbell because Individual 1's aunt, to whom the house belonged, did not give him keys. Bruce asserted that people were always home to let Individual 1 in. When asked why Individual 1's aunt did not give him keys, Bruce insisted that it "[h]ad nothing to do with this," but then claimed he did not know the reason. When asked if Individual 1 had been arrested for armed robbery several times, Bruce first replied, "That's a whole different case," but then said that he had no knowledge of this either (Tr. 82-86).

Bruce testified that he was taken to the 81 Precinct. As he exited the police vehicle, Respondent approached him, grabbed his face, and "jerked it into his view." Bruce "grabbed my face back away" and asked Respondent, "[W]hat's wrong with you? Are you okay?" Respondent just looked at Bruce and started smiling and laughing. Bruce admitted telling Respondent "if you take me in the back, like we can handle this whatever," meaning "I hear that you take people in the back and want to tussle with them, we can do that." Bruce claimed that Respondent accepted his challenge but then told Bruce, "[W]ell, don't say nothing about it" (Tr. 74-75, 86-87).

Bruce testified that a different officer approached Individual 1. That officer later struggled with Individual 1 at the top of the steps. According to Bruce, several officers entered the house, where they remained for over ten minutes (Tr. 66-67, 71-73, 77, 82-85, 89-91).

Individual 1 did not appear at trial. No explanation was given, even though the administrative prosecutor agreed that Individual 1 had been released from the incarceration that caused an earlier delay in the trial. Individual 1's interview by CCRB investigators on March 9, 2015, at Rikers Island was admitted as CCRB Exhibit 3.

According to Individual 1, on September 12, 2014, at approximately 2230 hours he was walking toward the yard of his house with Bruce. Individual 1 first noticed an unmarked car as he was entering the front gate to his house. The car drove past them and then backed up down the street once they noticed Individual 1. As they were about to enter the house, one of the officers called out his name and told him to come out of the yard. Individual 1 recognized Respondent from a previous arrest. According to Individual 1, Respondent and his colleagues would harass him for no reason and "always arrest me for just miscellaneous stuff." Individual 1 told the officer, "[N]o I'm not coming out. I didn't do anything wrong. I'm going in my house" (pp. 6-9, 12-13).

Individual 1 and Bruce did not stop walking because they were already in the front yard. The officers said to "come out the yard so we can check you." When Individual 1 tried to enter the house, however, the door was locked. Individual 1 had run up the front stairs to ring the doorbell, hoping that his cousin would let them in, while Bruce checked the door on the ground level, which was also locked. According to Individual 1 once the officers realized that the door was locked, they ran into the yard and aggressively started questioning him and Bruce about what they had in their pockets. The officers specifically asked if they had guns. Respondent approached Bruce on the ground level, while another officer ran up the stairs and approached Individual 1 (pp. 3-4, 14).

Individual 1 stated that Bruce did not like police officers and began getting "rowdy" and using profanity. The officers grabbed Bruce and threw him on the ground, where they struggled to handcuff him for approximately two minutes, before dragging him out of the yard. At that point, backup had been called and additional officers had arrived (pp. 14-15, 18).

Individual 1 stated that when the officer first approached him at the top of the stairs, he "touched" his chest, up and down his legs, and his crotch area. Individual 1 was instructed to remove the items that he had in his pockets, which was only money and keys. Individual 1's cousin Chavonne eventually opened the front door. When he tried to enter, an officer told him that he could not go

inside until he was checked by them. One of the officers told Individual 1 that he was talking too much and was going to be arrested. According to Individual 1, the officers wanted to know what he had in his pockets (pp. 19-21).

Individual 1 said that once his cousin opened the front door, he nevertheless entered the house and was followed inside by four officers. According to Individual 1, when the officers entered the house, they entered past the vestibule area and through the second interior door. One of the officers then grabbed him from behind and pulled him back outside. During the struggle to pull Individual 1 out of the house, one of the officers pushed his cousin down onto the floor. Individual 1 admitted resisting the officers' efforts to arrest him, and that he held onto the railing outside the house while his legs and upper body were being pulled (pp. 22-25, 27-28).

After ten minutes of struggle, Individual 1 was dragged down the steps while his family members watched from the front door. He was brought to a police vehicle, where Respondent punched him in the face and slammed the car door on his leg (pp. 4, 35-36).

When he got back to the precinct, Individual 1 stated, he was taken to a holding cell, where Respondent and two other officers "jumped" him. The officers punched, stomped, and kicked him while he was lying on the floor of the cell. He stated that at one point, the officers tried to hold his arms while Respondent hit him in the face (pp. 46-47).

CHEVONNE COLLINS testified that she was visiting family members at [REDACTED] on September 12, 2014. This was a private home. It was not a multiple dwelling and there were no apartments. At approximately 2330 hours, the doorbell rang. Collins opened the door and saw an officer at the bottom of the front steps on top of Michael Bruce. She also saw her cousin, Individual 1, at the top of the steps, on the landing outside the door, arguing with another officer. According to Collins, the officer at the top of the stairs swung and hit both her and Individual 1, causing all three of them to fall to the ground. Collins testified that her head hit the

top step and the front door swung open. She "felt bodies piling and weight piling" on top of them and began screaming and struggling to break free. The officers, including Respondent, handcuffed Individual 1 and placed him in a police vehicle. Individual 1 was arrested outside on the front step of the house, not inside the vestibule (Tr. 14, 16-19, 37-41).

Collins testified that at some point her uncle and Individual 1's father, [REDACTED], came out and were trying to figure out what was happening. Individual 1's sister, [REDACTED], also came out and recorded the incident with her cell phone (see CCRB Ex. I, video). The officers entered the vestibule area of the house with flashlights and stated that they were looking for something. According to Collins, two to three officers, including Respondent, entered the vestibule without asking consent to do so and despite her protestations. She described the vestibule as enclosed by the outer front door and an inner door leading to the rest of the house. Collins acknowledged that the officers did not proceed past the second door into the house (Tr. 20-22, 33-34, 41-42).

THE VIDEO generally was consistent with Collins's testimony as relevant to the charges here. The video depicts a struggle between officers and a suspect. Officers, including Respondent, are seen searching the vestibule with a flashlight but proceed no further.

RESPONDENT testified that on the night in question, he was assigned as the 81 Precinct anticrime sergeant. He stated that in September 2014, there were two robbery patterns of note in Brooklyn North. Both named Individual 1 as a suspect. Respondent himself was familiar with Individual 1 because he had been arrested in two prior armed robberies, both of which resulted in serious physical injury to the victims and both on [REDACTED]. On neither arrest did Individual 1 list [REDACTED] as his address. Individual 1 also was listed in the gang database (Tr. 94-95, 97-101, 162, 165).

On the night in question, Respondent indicated, he was on anticrime patrol with Police Officers William Reddin and Ross Garner. Respondent saw Individual 1 on the block of [REDACTED]

██████████ speaking to another male individual, later identified as Michael Bruce.

Respondent observed them standing by the curb line, mostly blocked from the officers' view by the parked cars. Because of Individual 1's history and Respondent not knowing Bruce, Respondent thought that Individual 1 could have been robbing Bruce. The lighting on the street was of a common amount, sufficient for the officers to observe (Tr. 101-05, 129-30, 140-41, 157, 165).

Respondent testified that his operator, Reddin, rolled down the window and called out, "[Y]o, Individual 1." Respondent asserted that this was not a stop and they just wanted to find out what Individual 1 was doing. Had Individual 1 only explained the situation, they would have gone on their way. Instead, Individual 1 froze and looked in both directions. He started running, up the steps of ██████████. Garner went up the stairs and tussled with Individual 1 there. Respondent testified on cross examination it was not until his team verbally engaged Individual 1 and he ran off, hurdling over Bruce at one point, that he thought a robbery was taking place (Tr. 102, 104, 106, 158-59, 165).

Respondent went after Bruce, who approached the ground level door. Still thinking Bruce was a victim, Respondent yelled, "[P]olice, turn around." Bruce said, "I know who the fuck you are." Now realizing Bruce was not a victim, Respondent noticed that his left sweatpants pocket was hanging low and asked him what was in it. Respondent told Bruce to keep his hands up but Bruce kept trying to reach his pocket and move away from Respondent. Bruce said something along the lines of "touch me and you will see what the fuck happens." When Bruce grabbed Respondent's wrist, he placed Bruce under arrest. The officers felt the pocket and saw that it was a hard object, but when they searched the pocket, it turned out to be a cell phone. According to Respondent, he had made over 300 gun arrests and had encountered handguns that were the same size as an iPhone. Respondent testified that he could not tell what

shape the object in Bruce's pocket was, only that the left "pocket was hanging a little bit lower," in a "subtle" way, than the right pocket (Tr. 105-08, 139, 142, 145, 150).

Reddin stayed with Bruce and Respondent went up the stairs to assist Garner, who was in a "full-fledged fight" with Individual 1 atop the landing. Someone opened the door and Individual 1 tried to get in. Once backup officers arrived "and came to the top of the stairs, we were then able to finally get him subdued and get him into custody at the top of that --right in that doorway there, right at the top of the stairwell" (Tr. 107-10).

Garner told Respondent that Individual 1 must have had something or dropped some kind of contraband, based on the desperate and extreme way he was fighting. Respondent "took a step in," conceding that he actually entered the home, and looked around with his flashlight. There was nothing there. Respondent believed that someone in the crowd of people in the home must have taken it (Tr. 109-12, 153).

Analysis

To begin with, it is this Court's assessment that Respondent's version of events generally was more credible than both the in-court testimony of Bruce and the hearsay statement of Individual 1. Both Bruce and Individual 1 demonstrated anti-police bias and a willingness to exaggerate the details of the incident, including alleged assaults, completed or threatened, while they were in custody at the 81 Precinct. Bruce refused to answer several questions, then claimed not to know the answer when directed to give a response. Individual 1 was an individual well known in the area for his criminal exploits, including two prior robbery arrests. On the other hand, while Respondent's testimony often was tangential and repetitive, he was professional and sincere on the witness stand.

Specification Nos. 1 & 2 – The Stops

In the first two specifications, Respondent is charged with stopping both Individuat I and Bruce without sufficient legal authority. Because the Court found Respondent to be more credible than Bruce or Individuat I Respondent's version of events is accepted. Even under those facts, however, the CCRB proved by a preponderance of the credible evidence that Respondent stopped Individuat I and Bruce without sufficient legal authority.

Under People v. De Bour, 40 N.Y.2d 210, 223 (1976) and Patrol Guide § 212-11, the police can make a request for information if it is based on an objective, credible reason, not necessarily indicative of criminality. See People v. Hendricks, 43 A.D.3d 361, 363 (1st Dept. 2007); PG § 212-11, p. 1, para. 4.

Respondent testified that when he first observed Individuat I and Bruce, he did not see anything specifically indicative of a crime being committed. They were merely standing together on the sidewalk. But based on where they were standing on the sidewalk, they were blocked by the line of parked cars, a common place to commit crimes in Individuat I's experience. As Respondent got closer, he recognized Individuat I from previous arrests, but not Bruce. Respondent also testified that he stopped the pair because Individuat I was standing on the same street where he was known to have committed robberies in the past and where Respondent had arrested him twice before. Additionally, Individuat I was listed as a suspect in two active robbery patterns within the precinct. Because Respondent did not know who Bruce was, he wanted to make sure Bruce was okay.

The tribunal finds that the information Respondent had in his possession failed to rise to the objective level required even to make a request for information. Individuat I was not actually doing anything other than standing on the street talking to someone. On a narrow sidewalk it is hardly unusual for people to stand on one side or the other. The robberies for which Individuat I was

arrested previously, or for which he was now a suspect, all involved weapons. There was no sign of a weapon here, no sign of fear exhibited in the supposed victim.

In short, Respondent did not articulate making observations consistent with a possible robbery attempt. This is different from cases where there were objective indicia that some kind of police intervention was called for. Cf. Matter of Chaz J., 106 A.D.3d 425 (1st Dept. 2013) (appellant and three associates encircling food delivery worker in area where there had been pattern of robberies of such workers provided objective credible reason to approach); People v. Hazel, 194 A.D.2d 440 (1st Dept. 1993) (objective credible reason provided by defendant's furtive actions, like dashing into nearby building upon approach of marked police vehicle in high-robbery area at 0330 hours); People v. Nichols, 156 A.D.2d 129 (1st Dept. 1989) (officers observed defendant and another male chasing complainant around 0400 hours in high-crime area). As such, Respondent stopped Individual 1 without sufficient legal authority. It follows that Respondent stopped Bruce as well without sufficient legal authority, as there was no objective reason to believe Bruce was a robbery victim. Respondent thus is found Guilty of the first two specifications.

Specification No. 3 – The Frisk

In the third specification, Respondent is charged with frisking Bruce without sufficient legal authority. According to Bruce, after he fled from approaching officers, Respondent caught him and frisked the pockets of his sweatpants. Bruce testified that he already was holding his cell phone in his hand and it was not in his pocket. According to Respondent, however, Bruce's left sweatpants pocket was hanging low and Respondent asked him what was in it. Bruce kept trying to reach his pocket and move away from Respondent. When Bruce threatened Respondent with violence and grabbed Respondent's wrist, Respondent arrested Bruce. Only

then did officers feel the pocket, discerning a hard object therein, which turned out only to be a cell phone.

As noted, the tribunal found Respondent to be a more credible witness than Bruce and more reliable than [REDACTED]'s hearsay statement. The problem for the CCRB is that Respondent did not describe a frisk, which is what the specification charges. Respondent described a search incident to arrest. Whether that arrest was valid is not relevant to the determination of whether a frisk took place. Respondent is in any event not charged with an improper arrest or an improper search. He is charged only with frisking Bruce. Because the credible evidence failed to show that Respondent frisked Bruce here, he is found Not Guilty of Specification No. 3.

Specification No. 4 –The Entry

Respondent admitted to entering [REDACTED] without consent after Individual 1 had been taken into custody. One of Respondent's subordinate officers, Garner, told him that because Individual 1 had been "fighting like crazy" to avoid being arrested, he must have had either a weapon or some sort of contraband. Garner believed that Individual 1 had thrown whatever he was trying to get rid of inside the house. Respondent stated that there was no other reasonable explanation for Individual 1's resistance. Neither Garner nor Respondent actually saw Individual 1 with anything, however, and nothing was actually found. Respondent rationalized this by claiming that someone inside the house must have taken it after Individual 1 threw it.

It is a basic principle of Fourth Amendment law that the warrantless entry into a home is presumptively unreasonable. See Payton v. New York, 445 U.S. 573, 587-88 (1980). The presumption of unreasonableness can be overcome when exigent circumstances exist. See People v. McBride, 14 N.Y.3d 440, 445 (2010); People v. Molnar, 98 N.Y.2d 328, 331-32 (2002). Such exigency exists where a police officer acts to prevent the imminent destruction of

evidence. See People v. Ellison, 46 A.D.3d 1341, 1342-43 (4th Dept. 2007) (accomplice arrest within close proximity of drug-selling apartment justified warrantless entry to secure evidence).

It is undisputed that Respondent's entry into the vestibule area occurred after Individual 1 had been handcuffed and taken into custody. The determination that Individual 1 may have dropped either a firearm or other contraband into the vestibule was based solely on the officers' sense that his violent resistance meant he had something he did not want the officers to find. There are countless reasons a suspect could fight with officers, such as not wanting to be taken into custody, a violent demeanor, etc. Without any other evidence to support the officers' conclusion, Respondent's entry lacked the requisite legal authority. Therefore, Respondent is found Guilty.

PENALTY RECOMMENDATION

In order to determine an appropriate penalty, Respondent's service record was examined. See Matter of Pell v. Board of Educ., 34 N.Y.2d 222, 240 (1974). Respondent was appointed to the Department on July 1, 1998. Information from his personnel record that was considered in making this penalty recommendation is contained in an attached confidential memorandum.

The CCRB recommended a penalty of the forfeiture of 11 vacation days for a guilty finding on all four specifications (Tr. 188-89). Although Respondent has been found Guilty of only three specifications, the general framework for the CCRB's recommendation is a valid one and is supported by recent Department precedent. See Case No. 2014-12260 (May 24, 2016) (sergeant forfeited five vacation days for entering a home without sufficient legal authority); Case Nos. 2014-11787-88 (Oct. 13, 2015) (two police officers each forfeited two vacation days for stopping complainant without sufficient legal authority).

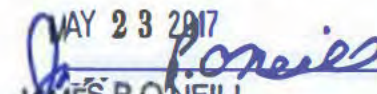
Respondent has an extraordinarily meritorious history with the Department, see Confidential Mem., infra. It is therefore recommended that Respondent forfeit 5 vacation days as a penalty.

Respectfully submitted,



David S. Weisel
Assistant Deputy Commissioner

APPROVED

MAY 23 2017

JAMES P. O'NEILL
POLICE COMMISSIONER



POLICE DEPARTMENT CITY OF NEW YORK

From: Assistant Deputy Commissioner Trials
To: Police Commissioner
Subject: CONFIDENTIAL MEMORANDUM
SERGEANT MICHAEL MILLER
TAX REGISTRY NO. 921596
DISCIPLINARY CASE NO. 2015-14306

On his last three annual performance evaluations, Respondent received an overall rating of 5.0 "Extremely Competent." He has been awarded 109 medals for Excellent Police Duty, 43 medals for Meritorious Police Duty, three Commendations, one Honorable Mention, one Combat Cross, and one medal for Meritorious Police Duty – Integrity. [REDACTED]

From May 4, 2007, to May 4, 2008, Respondent was on Level 1 Force Monitoring for having three or more CCRB complaints in one year.

Respondent has no prior disciplinary history.

David S. Weisel
Assistant Deputy Commissioner Trials